WHITE-COLLAR CRIME
DISPUTE RESOLUTION
SANCTIONS

Out. No. 20251209/1

To the Prosecutors in Criminal Proceeding No. 22017000000000272 –
Prosecutor of the Prosecutor General's Office Oleksandr Safaryan
13/15 Riznytska St., Kyiv, 01011

Defense Counsel: **Attorney Vladyslav Miftakhutdinov**
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In the interests of: **Oleksandr Vyacheslavovych Boguslayev**

Criminal Proceeding
No. 22017000000000272

MOTION
on determination of investigative jurisdiction of criminal proceeding
No. 22017000000000272

(pursuant to Article 220, Part 2 of Article 218 of the CPC of Ukraine)

I, attorney Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; authority – Annexes 1, 2).

On 25 April 2025, a Notice of Suspicion was drawn up against my Client within criminal proceeding No. 22017000000000272 dated 06 July 2017 (hereinafter – the Criminal Proceeding; Annex 3).

The pre-trial investigation within the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine. Procedural guidance is carried out by prosecutors of the Prosecutor General's Office.

As of 07 February 2025, You were appointed senior prosecutor of the group of prosecutors within the Criminal Proceeding (Annex 4).

The defense has grounds to file a motion to change the investigative jurisdiction of the Criminal Proceeding, as:

(1) The Criminal Proceeding, in accordance with the provisions of the CPC, falls under the exclusive subject-matter investigative jurisdiction of NABU;

(2) The prosecutor has a procedural duty to determine the proper investigative jurisdiction of the Criminal Proceeding;

(3) The prosecutor must supervise compliance with legislative requirements within the criminal proceeding;

(4) Proper investigative jurisdiction of the proceeding is a guarantee of observance of the Client's right to due process of law provided for by Article 2 of the CPC.

The above is substantiated by the following.

1. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding by NABU

The pre-trial investigation of the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine.

In the indicated Criminal Proceeding, investigators of the Main Investigation Directorate of the Security Service of Ukraine drew up Notices of Suspicion regarding V.O. Boguslayev and O.V. Boguslayev.

On 28 April 2025, V.O. Boguslayev was notified of suspicion of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

On 25 April 2025, in the Criminal Proceeding, a Suspicion was drawn up regarding O.V. Boguslayev concerning a crime provided for by Part 3 of Article 209 of the CC.

According to the investigation's version:

(1) V.O. Boguslayev during 1994–2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued price as a result of failure to index the value of property during the privatization of the SE "Motor Sich".

(2) Subsequently, V.O. Boguslayev and O.V. Boguslayev allegedly legalized criminal proceeds, namely sold shares of JSC "Motor Sich" (which were acquired by criminal means) to representatives of the PRC through controlled non-resident companies.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006 – 29 August 2019 (Annexes 5–8).

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

This, in turn, indicates the investigative jurisdiction of such proceeding by NABU.

Thus, pursuant to paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for by **Articles 191, 206-2, 209, 210, 211, 354 (regarding employees of legal entities of public law), 364, 366-2, 366-3, 368, 368-5, 369, 369-2, 410 of the CC of Ukraine, if the criminal offense is committed by a People's Deputy of Ukraine.**

We note that the CPC of Ukraine **does not establish a requirement** that the special status of the alleged subject of the crime extend to the entire period of investigation of the proceeding.

That is, during the period of investigation, the person may not possess the corresponding status. For NABU's investigative jurisdiction, what is decisive is that the person possesses such special status at the time of committing the alleged offense.

In addition, the CPC of Ukraine does not establish that the alleged commission of the crime must be connected with the person having such special status (using it).

Therefore, **the Criminal Proceeding is subject to the investigative jurisdiction of NABU, since the criminal offense incriminated against V.O. Boguslayev – Part 5 of Article 191 of the CC, was allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine.**

In addition, such investigative jurisdiction of NABU in this case is exclusive (i.e. such that precludes investigation of the Proceeding by other bodies) in view of the following:

(1) pursuant to Part 5 of Article 36 of the CPC of Ukraine, **it is prohibited to entrust the conduct of pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of NABU to another pre-trial investigation body**, except in cases where objective circumstances exist that make the functioning of NABU or its conduct of pre-trial investigation impossible under martial law.

Such circumstance is absent in this Criminal Proceeding.

(2) Part 5 of Article 36 of the CPC of Ukraine establishes that **it is prohibited for pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine to be conducted by other pre-trial investigation bodies, except for NABU and the central apparatus of the SBI in accordance with their investigative jurisdiction.**

Considering the stated, **the Criminal Proceeding falls under the exclusive investigative jurisdiction of NABU detectives.**

Thus, an analysis of Part 5 of Article 36, Parts 2, 5 of Article 216 of the CPC of Ukraine indicates the absence of authority in the bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, according to Part 2 of Article 19 of the Constitution of Ukraine, state power bodies and their officials are obligated to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.

2. Regarding the prosecutor's duty to determine another investigative jurisdiction of the Criminal Proceeding.

Part 2 of Article 218 of the CPC of Ukraine regulates the procedure for actions of an investigator/prosecutor upon discovering that a criminal proceeding does not fall within the investigative jurisdiction of the investigation body.

In particular, the specified provision **establishes the duty of the prosecution to respond properly** to identified facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, according to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, **within ten days from the day such circumstances are established, is obligated to adopt a ruling on determining investigative jurisdiction.**

Therefore, the specified provision establishes:

(1) the prosecutor's duty to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the time limit within which the prosecutor must make a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified provision establishes precisely the duty of the prosecutor, in case of violation of investigative jurisdiction, to take actions aimed at determining proper investigative jurisdiction.

Within the Criminal Proceeding, the prosecutor is obligated to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine another investigative jurisdiction of the Criminal Proceeding within 10 days, as:

(1) The Criminal Proceeding constitutes the exclusive investigative jurisdiction of NABU (in connection with the circumstances stated in item 1 of the Motion);

(2) The Criminal Proceeding cannot be subject to the investigative jurisdiction of the Main Investigation Directorate of the Security Service of Ukraine.

On 07 February 2025, You were included in the group of prosecutors and designated senior prosecutor of the group of prosecutors.

The circumstances necessitating the change of investigative jurisdiction of the Proceeding arose on 25 April 2025 – at the moment of notice of suspicion under Part 5 of Article 191 of the CC to a special subject.

Therefore, it was from this date that such 10-day period for determining the investigative jurisdiction of the Criminal Proceeding to NABU began.

Pursuant to Part 1 of Article 220 of the CPC of Ukraine, a motion by the defense for the execution of any procedural actions must be considered by the prosecutor within a period not exceeding three days from the moment of submission and satisfied if relevant grounds exist.

Thus, this Motion contains requests for conducting procedural actions (determination of the investigative jurisdiction of the Criminal Proceeding) and must be considered by the prosecutor in accordance with the requirements of Article 220 of the CPC of Ukraine.

Considering the stated, guided by Articles 8, 9, 36, 216, 218, 220 of the CPC of Ukraine, –

REQUEST:

1. To comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 06 July 2017 to the National Anti-Corruption Bureau of Ukraine.
2. To inform attorney Vladyslav Miftakhutdinov about the results of the consideration of the Motion at the address: Entrance 13, 22 Rybalska St., Kyiv, 01011, and at the e-mail address: v.miftakhutdinov@vbpartners.ua.

Annexes:

1. Certified copy of the Certificate of the right to practice law.
2. Certified copy of the Power of Attorney / Order for provision of legal assistance.
3. Certified copy of the Extract from the Unified Register of Pre-Trial Investigations (ERDR).
4. Certified copy of the Resolution of the First Deputy Prosecutor General O.M. Khomenko on designating the group of prosecutors dated 07 February 2025.
5. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 25 May 2006 to 23 November 2007 (V convocation).
6. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 23 November 2007 to 12 December 2012 (VI convocation).

7. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 12 December 2012 to 27 November 2014 (VII convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 27 November 2014 to 29 August 2019 (VIII convocation).

09.12.2025

Defense Counsel **Vladyslav MIFTAKHUTDINOV**